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****Hemköpskedjan AB****

Decision following supervision under the

Data Protection Regulation –

Hemköpskedjan AB

Decision of the Swedish Authority for Privacy Protection

The Swedish Authority for Privacy Protection (IMY) finds that the investigation in this matter does not show that Hemköpskedjan AB (556113-8826) has failed to comply with Article 38.6 of the Data Protection Regulation.

The matter is concluded.

****Account of the supervisory matter****

****Background, etc.****

The European Data Protection Board (EDPB) has conducted a coordinated action in 2023 aimed at investigating whether data protection officers have the role and resources required under Articles 37–39 of the Data Protection Regulation. The Swedish Authority for Privacy Protection (IMY) has participated in the coordinated action and conducted it in the form of supervision against about fifty data controllers. It is against this background that IMY has initiated supervision against Hemköpskedjan AB (Hemköp).

The supervision initially involved Hemköp answering about thirty questions regarding, among other things, the qualifications, duties, and position of the data protection officer. The questions are based on a questionnaire created by the EDPB within the framework of the coordinated action.

The goal of the coordinated action has been to broadly facilitate joint actions in a flexible but coordinated manner, ranging from increasing common awareness and gathering information to checking compliance and conducting joint investigations. This enables targeted follow-up and actions both at the national level and through the EDPB. The results from the review have been compiled in a report from the EDPB.

1 Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

2 EDPB document on the framework for coordinated implementation under Regulation 2016/679. Adopted on 20 October 2020.

3 EDPB report 2023 “Coordinated Enforcement Action, Designation and Position of Data Protection Officers,” adopted on 16 January 2024.

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Of the supervisions that IMY has initiated within the framework of the coordinated action, the authority

has proceeded with a smaller selection for a more in-depth review of certain issues. This supervision is one of those cases where IMY has seen reason to pose supplementary questions to Hemköp, as the data controller, regarding Article 38.6 of the Data Protection Regulation. The purpose has been to investigate whether there is a conflict of interest in violation of the article between the role of the data protection officer and the data protection officer's other duties and assignments within the organization. IMY has not examined whether Hemköp otherwise complies with Articles 37-39 of the Data Protection Regulation based on previously provided answers.

****Information from Hemköp****

Hemköp has mainly stated the following. The organization's data protection officer also holds the role of the group's Risk Manager. This role involves responsibility for the group's overall risk management framework, which specifically includes writing governing documents, coordinating, and harmonizing the risk reporting of group companies. The job responsibilities do not include identifying or managing risks. The Risk Manager also has other areas of responsibility, e.g., concerning crisis management processes and continuity planning. The responsibility functions similarly in these areas, i.e., the Risk Manager is responsible for coordinating the group's work on these issues but has no responsibility for managing the risks in these areas. The role of Risk Manager does not involve participating in determining the purposes and means for Hemköp's personal data processing, and they are neither part of the executive management nor the management team.

Furthermore, Hemköp has described that the roles of data protection officer and Risk Manager, as applied within the group, are similar in nature but do not overlap, and do not lead to a conflict of interest, as the roles are aimed at maintaining the group's framework for managing different types of risks.

****Justification of the decision****

****Applicable provisions, etc.****

The role of the data protection officer is regulated in Articles 37–39 of the Data Protection Regulation. The data protection officer shall, among other things, inform and advise within the organization on applicable data protection legislation, monitor the organization's compliance with data protection legislation and internal governing documents, advise on impact assessments, and be the contact person for the supervisory authority. The data protection officer must be independent and autonomous in the performance of their tasks, as stated in Recital 97.

According to Article 38.6 of the Data Protection Regulation, the data protection officer may carry out other tasks and assignments in addition to the role of data protection officer. The data controller or processor must ensure that such tasks do not lead to a conflict of interest.

The Article 29 Working Party's guidelines on data protection officers state the following regarding the article:

The requirement that there must be no conflicts of interest is closely linked to the requirement that data protection officers must be able to act independently. Although data protection officers may have other functions, they can only be entrusted with other tasks and assignments on the condition that they do not give rise to conflicts of interest. This particularly means that the data protection officer cannot hold such a position within...

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the organization that means that he or she determines the purposes and means for the processing of personal data. This must be assessed on a case-by-case basis depending on how the organization is structured.

As a rule of thumb, conflicting positions within the organization may be positions in top management (e.g., CEO, highest executive decision-maker, CFO, chief physician, marketing manager, HR manager, or IT manager), but also other functions lower in the organizational structure, if such positions or functions mean that the data protection officer determines the purposes and means for the

processing of personal data.⁴

The Court of Justice of the European Union has clarified in the case X-FAB Dresden that the data protection officer cannot be entrusted with tasks and assignments that could harm the performance of the duties he or she performs as a data protection officer. This is because Article 38.6 of the Data Protection Regulation aims to preserve the functional independence of the data protection officer and thereby ensure the effectiveness of the provisions of the Data Protection Regulation. The assessment of whether a particular assignment risks leading to a conflict of interest with the role of the data protection officer should be made based on relevant circumstances in the individual case, including against the background of the data controller's or data processor's organizational structure and its internal rules/policies.⁵

Assessment by the Swedish Authority for Privacy Protection

The question that IMY must consider is whether there is a conflict of interest contrary to the Data Protection Regulation due to Hemköp's data protection officer also holding the role of the group's Risk Manager.

According to what is stated above, functions that involve leading positions typically give rise to a conflict of interest with the role of the data protection officer, as it often means that the officer is involved in decisions regarding personal data processing in such a way that the independence of the data protection officer can be questioned.

Hemköp has further described what is included in the role of Risk Manager. The account shows that the tasks do not entail a responsibility that leads to involvement in decisions regarding the purposes and means for personal data processing. It is also not indicated in the description that the tasks involve a responsibility to otherwise, e.g., through advice or support, manage data protection legal issues. IMY finds against this background that the investigation in the case does not show that there is a conflict of interest contrary to the Data Protection Regulation by holding the described role alongside the assignment as data protection officer.

The case is concluded.

This decision has been made by the unit manager Jonas Agnvall after presentation by the lawyer Lisa Zettervall. In the final handling, the acting legal manager Cecilia Agnehall has also participated.

Jonas Agnvall, 2024-06-27 (This is an electronic signature)

⁴ Article 29 Working Party's guidelines on data protection officers, WP 243 rev. 01, last reviewed and adopted on April 5, 2017, page 19.

⁵ Court of Justice of the European Union ruling of February 9, 2023, X-FAB Dresden, C-453/21, EU:C:2023:79, paragraphs 41–42 and 46.

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How to appeal

If you wish to appeal the decision, you should write to IMY. Indicate in the letter which decision you are appealing and the change you are requesting. The appeal must be received by IMY within three weeks from the day you were notified of the decision. If you are a party representing the public, the appeal must be received within three weeks from the day the decision was announced. If the appeal has been submitted in a timely manner, IMY will forward it to the Administrative Court in Stockholm for consideration.

You may email the appeal to IMY if it does not contain any sensitive personal data or information that

may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.